MYS-PDF-1 · KDN POA · CALLING VISA

POWER OF ATTORNEY AND AGENCY APPOINTMENT
MINISTRY OF HOME AFFAIRS (KDN) · FOREIGN WORKER DIVISION

TEMPLATE — COMPLETE EVERY [FIELD] BEFORE SIGNING

[AUTHORISED AGENCY] · [LYC NO.] · [EMPLOYER_SSM_NO] · [SOURCE_COUNTRY]

This Power of Attorney is given by a Malaysian employer to a private employment agency registered with the Ministry of Home Affairs (KDN) to act on the employer's behalf in the recruitment of foreign workers from the source country named below. It authorises the agency to submit and collect the calling visa (Visa Dengan Rujukan, VDR), to deal with the KDN Foreign Worker Division, the Immigration Department and the Labour Department, and to receive and transmit documents — but not to receive wages, hold passports, or borrow money on the employer's behalf.

Dokumen ini ialah Surat Kuasa Wakil daripada majikan Malaysia kepada agensi pekerjaan swasta yang berdaftar dengan KDN untuk mengurus pengambilan pekerja asing. Agensi hanya diberi kuasa untuk urusan permohonan, dokumen dan komunikasi dengan pihak berkuasa; agensi tidak diberi kuasa menerima gaji, menyimpan pasport atau meminjam wang bagi pihak majikan.

1. THE EMPLOYER (PEMBERI KUASA)

EMPLOYER COMPANY NAME (SDN BHD)		SSM REGISTRATION NO.	
REGISTERED ADDRESS		ADDRESS LINE 2 / STATE	
AUTHORISED SIGNATORY		NRIC / PASSPORT	
TELEPHONE		E-MAIL	
MSIC CODE / INDUSTRY		SECTOR	
MALAYSIAN EMPLOYEES		EXISTING FOREIGN WORKERS	

2. THE AGENCY (PENERIMA KUASA)

AGENCY NAME		KDN / JTK LICENCE NO.	
AGENCY ADDRESS		LICENCE VALID TO	
AGENCY AUTHORISED OFFICER		NRIC / PASSPORT	
TELEPHONE		E-MAIL	

3. SOURCE COUNTRY AND QUOTA

SOURCE COUNTRY		OVERSEAS COUNTERPART AGENCY	
OVERSEAS LICENCE / APPROVAL NO.			
KDN QUOTA / E-QUOTA REFERENCE		WORKERS APPROVED	
APPROVED SECTOR / SUB-SECTOR			
CALLING VISA (VDR) REFERENCE		VDR DATE	
LEVY PER WORKER (RM)		LEVY PAID (RM)	

4. POWERS GRANTED (KUASA YANG DIBERIKAN)

The employer irrevocably appoints the agency, and its directors and authorised officers, as its attorney in Malaysia, to do the following in the employer's name and on its behalf:

1. apply for, submit, amend, follow up and collect the KDN quota approval and the calling visa (VDR / Visa Dengan Rujukan) and all supporting certificates, including the FWCMS (Foreign Workers Centralised Management System) registration and e-PLKS submissions;

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2. lodge, vary and cancel foreign worker levies, SOCSO and EIS contributions, and the security bond required by the Immigration Department, and collect refunds due to the employer;

3. submit documents to and collect documents from KDN, the Immigration Department, the Labour Department (JTK), PERKESO, the Inland Revenue Board and the source-country mission in Kuala Lumpur;

4. correspond with the overseas counterpart agency on the recruitment, medical screening (FOMEMA), training and travel arrangements for the workers named in the approved quota;

5. sign, seal and deliver the forms and declarations required for the above, and appoint a substitute attorney with the employer's prior written consent.

The agency has **no** authority to: employ the workers in the employer's name; receive or handle their wages; keep their passports, work permits or personal documents after arrival; charge the workers any fee for placement, the levy, the security bond or the flight; or incur any debt, guarantee or contract for more than RM 5,000 without the employer's written approval.

5. VALIDITY, REVOCATION AND LIABILITY

VALID FROM	VALID UNTIL	REVOCABLE AT WILL (YES / NO)

The power takes effect on the date below and continues until the calling visas for the approved quota have been issued and the workers have entered Malaysia, or until revoked in writing. Revocation takes effect only when the written notice is received by the agency and a copy is lodged with KDN; acts lawfully done before that are binding on the employer. The agency must account for all money, receipts and original documents within 14 days of the completion of the appointment or of a written demand, whichever is earlier.

Agensi hendaklah menyerahkan semua dokumen asal, resit dan baki wang dalam tempoh 14 hari selepas penamatan pelantikan atau selepas permintaan bertulis, mengikut mana yang lebih awal.

Executed before a Commissioner for Oaths / notary (s. 3 Powers of Attorney Act 1949)

6. EXECUTION (TANDATANGAN)

PLACE OF EXECUTION	DATE	WITNESS NAME

FOR THE EMPLOYER
[EMPLOYER_NAME] · common seal / director

FOR THE AGENCY
[AGENCY_NAME] · director

COMMISSIONER FOR OATHS / NOTARY
Name, appointment no., seal

WITNESS
Name, NRIC, signature

Annexed: certified copy of the employer's SSM Form 9 / 24 / 49, board resolution approving the appointment, the agency's KDN licence, the KDN quota approval letter and the FWCMS screen print of the approved quota.